

Repeal of s. 3
of principal
Act.

3. Section three of the principal Act is hereby repealed.

Act not re-
trospective.

4. This Act shall not apply in the case of any fire which has occurred before the passing of this Act.

Short title.

5. This Act may be cited as the *Railway Fires Act* (1905) *Amendment Act*, 1923.

CHAPTER 28.

An Act to amend the law relating to the sale of intoxicating liquor to persons between fourteen and eighteen years of age. [31st July 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Penalty for
sale or
supply of
intoxicating
liquor to
young
persons.

1.—(1) The holder of a justices' on-licence shall not knowingly sell or allow any person to sell, nor shall any servant of his knowingly sell to be consumed on the premises any intoxicating liquor to any person under the age of eighteen years; and no person under the age of eighteen years shall purchase or attempt to purchase in any licensed premises any intoxicating liquor for his own consumption therein: Provided that nothing in this subsection shall prevent the sale, supply, or purchase of beer, porter, cider, or perry to or by a person over the age of sixteen years where such liquor is sold, supplied, or purchased only for consumption at a meal to be consumed at the same time in such portion of the premises as is usually set apart for the service of meals, not being a bar as defined in section one hundred and twenty of the *Children Act*, 1908.

8 Edw. 7.
c. 67.

(2) The holder of a justices' on-licence shall not knowingly allow, nor shall any servant of his knowingly allow, any intoxicating liquor to be consumed by any

person under the age of eighteen years in any bar as defined above on his licensed premises; and no person shall purchase, or attempt to purchase, any intoxicating liquor for consumption by a person under the age of eighteen years in any such bar.

(3) If any person acts in contravention of this section, he shall be liable in respect of each offence to a fine not exceeding in the case of the first offence twenty shillings, and in the case of any subsequent offence forty shillings, but nothing in this Act shall be deemed to reduce the amount of any fine or penalty which may be imposed under section sixty-eight of the Licensing (Consolidation) Act, 1910, or section fifty-nine of the Licensing (Scotland) Act, 1903, for any contravention of either of those sections.

10 Edw. 7.
and 1 Geo. 5.
c. 24.
3 Edw. 7.
c. 25.

(4) In the application of this section to Scotland references to a certificate as defined in Part VII. of the Licensing (Scotland) Act, 1903, shall be substituted for references to a justices' on-licence, and references to exciseable liquor shall be substituted for references to intoxicating liquor.

(5) Section sixty-seven of the Licensing (Consolidation) Act, 1910, and section fifty-eight of the Licensing (Scotland) Act, 1903, are hereby repealed.

2. This Act may be cited as the Intoxicating Liquor (Sale to Persons under Eighteen) Act, 1923.

Short title
and construc-
tion.

This Act as it applies to England and Wales shall be construed as one with the Licensing Acts, 1910 and 1921, and those Acts and this Act as it so applies may be cited together as the Licensing Acts, 1910 to 1923.

11 & 12
Geo. 5. c. 42.

This Act, as it applies to Scotland, shall be construed as one with the Licensing (Scotland) Acts, 1903 to 1921, and those Acts and this Act as it so applies may be cited together as the Licensing (Scotland) Acts, 1903 to 1923.